

to the previous one”;

- “the company has a procedure in place for the exercise of the rights of data subjects (Articles 15 to 22 of the GDPR), allowing the data subject to request access to their personal data, as well as rectification or deletion of the same, limitation or opposition to their processing, and data portability. To exercise these rights, one must refer to the contact details, email [info@stacque.com](mailto:info@stacque.com) or address – via Giordano di Capi, 28-30 – 46100 Mantova (MN). The references and methods for exercising the right to lodge a complaint are provided on the website of the Data Protection Authority”;

- “after the claimant's resignation, he verbally requested the personnel manager for copies of the training certificates. He was verbally informed that the company had proceeded to delete the certificates, as previously stated via email. In addition to the verbal request and the email dated 15/9/2020, the claimant sent a second email to the company on 24/9/2020 with the same request, concurrently with the previous one”;

## 2. The legal framework.

The legal framework applicable to the case at hand is primarily constituted by the GDPR, particularly Article 15, which grants data subjects the right to access their personal data, and the national legislation on data protection, specifically the Code.

## 3. The Authority's assessment.

The Authority, having examined the documentation submitted and the statements made by the parties involved, finds that the company has not adequately responded to the request for access to personal data made by the claimant. The lack of a timely and complete response constitutes a violation of Article 15 of the GDPR, which mandates that data subjects must be provided with information regarding their personal data upon request.

## 4. Conclusion.

In light of the above, the Authority deems it necessary to adopt corrective measures to ensure compliance with the GDPR and to protect the rights of the claimant.

## 5. Orders.

Therefore, the Authority orders S.T.A. Società Trattamento Acque s.r.l. to:

a) provide the claimant with access to the requested training certificates within 30 days from the notification of this decision;

b) implement procedures to ensure that future requests for access to personal data are handled in accordance with the provisions of the GDPR;

c) report back to the Authority on the actions taken to comply with this order within 60 days from the notification of this decision.

This decision is made in accordance with the powers conferred upon the Authority by the GDPR and the national legislation on data protection.

Done in Rome, on 12 October 2023

THE PRESIDENT

Pasquale Stanzione

they were informed by phone that the certificates of the training courses, as per the procedure signed on 18/10/2016 during the hiring phase, would not be issued, as they were canceled with the end of the employment relationship”;

- regarding the lack of response to the requests for information sent by the Authority “the lack of response is attributable to a negligent error of the company, as almost all the office staff due to the Covid-19 epidemiological emergency has been working remotely since the first half of 2020 and there has been a lack of internal communication with the company’s managers. I specify that even at this moment the company is struggling to manage the flow of communications from outside. [...] To

prevent future omissions and errors, the company has committed to establish, through specialized software, a unique protocol for all incoming certified emails and a redirect to the functions responsible for managing the reporting even in smart working mode. What has been said is currently being implemented.”

The Company, during the inspection assessment, delivered, among other things, a copy of the “internal personnel regulations” as well as a copy of four registers relating to attendance at qualification/training courses for updates, which the complainant also participated in.

On May 6, 2022, the Office notified the Company of the alleged violations of the Regulation found, with reference to Articles 12 and 15 of the Regulation, pursuant to Article 166, paragraph 5, of the Code. Following the aforementioned notification, no defensive writings were submitted by the Company.

## 2. The outcome of the investigation.

### 2.1. Established facts and observations on the regulations regarding personal data protection.

It is stated that, unless the fact constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code “Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor.” Based on the elements acquired during the investigative activity (referred to in the previous paragraph 1) as well as subsequent evaluations of this Department, it has been established that the Company, as the data controller, has acted in a manner inconsistent with the regulations regarding data protection concerning the exercise of the right of access, failing to provide an adequate response to the requests submitted by the complainant.

In this regard, Article 12 of the Regulation is referenced, to be read in conjunction with the rules relating to the specific rights recognized by the legal system to the data subject, according to which “the data controller takes appropriate measures to provide the data subject with all the information referred to in Articles 13 and 14 and the communications referred to in Articles 15 to 22 and Article 34 regarding the processing in a concise, transparent, intelligible, and easily accessible form, using clear and plain language [...]. The information is provided in writing or by other means, including, where appropriate, by electronic means. If requested by the data subject, the information may be provided orally, provided that the identity of the data subject is verified by other means” (par. 1).

It is also provided that “the data controller facilitates the exercise of the rights of the data subject pursuant to Articles 15 to 22” (par. 2).

Paragraph 3 of the same article specifies that “the data controller provides the data subject with information regarding the action taken concerning a request under Articles 15 to 22 without undue delay and, in any case, no later than one month from the receipt of the request itself. This period may be extended by two months if necessary, taking into account the complexity and number of requests. The data controller informs the data subject of such extension and the reasons for the delay within one month of receiving the request. If the data subject submits the request by electronic means, the information is provided, where possible, by electronic means, unless otherwise indicated by the data subject.”

According to paragraph 4 of the same article, the data controller, if it does not comply with the request, “informs the data subject without delay, and at the latest within one month from the receipt of the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedy.”

Article 15 of the Regulation provides that “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed and, if so, to obtain access to the personal data” and to a series of information indicated in the same article (par. 1).

Furthermore, according to par. 3 of the same article, “the data controller provides a copy of the personal data undergoing processing. [...] If the data subject submits the request by electronic means, and unless otherwise indicated by the data subject, the information is provided in a commonly used electronic format” (par. 3).

The Guidelines 01/2022 on data subject rights – Right of access, EDPB, March 28, 2023, clarify that “In some cases, the personal data itself sets the requirements in what format the personal data should

be provided” (see par. 5.2.5, point 155, unofficial translation “In some cases, the personal data itself defines the requirements of the format to be used”).

Article 157 of the Code provides that “within the powers of Article 58 of the Regulation, and for the performance of its tasks, the Guarantor may request the data controller, the processor, the representative of the controller or the processor, to the interested party or also to third parties to provide information and to exhibit documents also with reference to the content of databases.”

## 2.2. Established Violations.

In this regard, from the documents of the investigation, it is noted that the Company did not provide an adequate response to the access requests pursuant to Article 15 of the Regulation submitted by the complainant.

In particular, with reference to the request made by the complainant on September 15, 2020 (“I kindly request the training certificates that I have completed in these four years”), the response from the Company, provided via email on the same date, cannot be considered compliant with the personal data protection regulations (“as for the certificates, according to company practice, they are not issued”): on this occasion, in fact, the reason for the impossibility of granting access to the training certificates was not clarified, as required by Article 12, paragraph 4 of the Regulation, nor was any indication given regarding the right to lodge a complaint with a supervisory authority or to seek judicial remedy against the expressed denial.

Neither following the request submitted by the complainant on September 23, 2020, and sent to the email address [info@stacque.com](mailto:info@stacque.com), did the Company provide an adequate response.

In this regard, in fact, during the inspection, the Company merely stated, without providing any evidence of the response given orally, that it had “responded by phone that the training course certificates, as per the procedure signed on October 18, 2016, at the time of hiring, would not be issued, as they were deleted with the end of the employment relationship.”

Given that, as already specified, no evidence of a response, even if only verbal, to the request of September 23, 2020, was provided, even if it had indeed been given with the content presented by the Company, such a response could not be considered adequate: this is because it would be deemed lacking the minimum content required by Article 12, paragraph 4 of the Regulation in the case of denial of the exercise of a right and furthermore would have been provided in a form (orally) not expressly requested by the interested party (see Article 12, paragraph 1 of the Regulation “if requested by the interested party, the information may be provided orally, provided that the identity of the interested party is proven by other means”). The request to exercise the right of access, in fact, was submitted via email.

Nor can it be considered, as the Company claims, that informing the complainant at the time of hiring, through the company regulation (in particular point 3.9, referred to by the Company during the inspection: “the documentation provided and that formed during the employment relationship (for example, professional qualification certificate for safety training, etc.) will be kept in compliance with the current privacy regulations by the aforementioned office for the entire duration of employment. In the event of termination, all documentation of the worker, except for that described in Article 18 of Legislative Decree 81/2008 and subsequent amendments, will be deleted in compliance with Article 17 of the privacy regulation”) renders the conduct of the Company compliant with personal data protection regulations: in this regard, it is recalled that the right recognized to the interested party to access their data subject to processing, as well as the information provided for in Article 15 of the Regulation, in application of the principles of transparency and fairness (Article 5, paragraph 1, letter a) of the Regulation), cannot be considered satisfied through mere reference to what is contained in the information on data processing referred to in Articles 13 and 14 of the Regulation, without any reference to the processing carried out in concrete terms.

The right of access and the right to receive the so-called information, although correlated, are, in fact, different rights, enshrined in distinct provisions of the legal system, responding to needs for protection and guarantee of the interested party that are not completely overlapping.

As recently clarified by the Guidelines 01/2022 on data subject rights – Right of access, EDPB, March

28, 2023, in responding to the access request, the data controller must adapt, to the specific condition of the interested party, what is indicated in necessarily general terms in the information (or in the record of processing activities).

Therefore, all the information provided in the information notice, in the communication to the interested party pursuant to Article 15 of the Regulation, must be verified and tailored in light of the concrete processing operations carried out with respect to the requester (see Guidelines 01/2022 cited, point 112 et seq.; in general terms see paragraph 113 "In the context of an access request under Art. 15, any information on the processing available to the controller may therefore have to be updated and tailored for the processing operations actually carried out with regard to the data subject making the request. Thus, referring to the wording of its privacy policy would not be a sufficient way for the controller to give information required by Art. 15(1)(a) to (h) and (2) unless the 'tailored and updated' information is the same as the information provided at the beginning of the processing," (unofficial translation: "In the context of the communication of the information referred to in Article 15, all the information on the processing available to the data controller must therefore be updated and adapted to the processing operations).

effectively carried out against the interested party who submits the request. Therefore, the reference to the general privacy notice (privacy policy) would not be a sufficient means for the data controller to provide the information referred to in Article 15, paragraph 1, letters a) - h), and (2), unless the "tailored and updated" information coincides with the information provided at the beginning of the processing.

It is also noted that the requests to receive copies of the training certificates were made prior to the termination of the employment relationship (10.10.2020), thus before the documentation was deleted according to company practice. The Company, therefore, violated Articles 12 and 15 of the Regulation. Furthermore, the Company violated Article 157 of the Code by failing to provide any response to the request for information pursuant to Article 157 of the Code sent by the Office.

3. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation. For the above reasons, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to allow for the closure of the present procedure, as none of the cases provided for in Article 11 of the Garante Regulation No. 1/2019 apply. The conduct carried out by the Company, which consisted of providing an inadequate response to the access requests made by the complainant, is indeed unlawful, as stated above, in relation to Articles 12 and 15 of the Regulation, just as the failure to respond to the investigative request sent by the Authority does not comply with the provisions of Article 157 of the Code.

The violation, established in the terms outlined in the reasoning, cannot be considered "minor," taking into account the nature, the severity of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (cons. 148 of the Regulation).

Therefore, in light of the corrective powers attributed by Article 58, paragraph 2 of the Regulation, in the light of the specific case, an administrative pecuniary sanction is imposed pursuant to Article 83 of the Regulation, commensurate with the circumstances of the specific case (Article 58, paragraph 2, letter i) of the Regulation).

4. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

At the conclusion of the procedure, it is found that S.T.A. Società Trattamento Acque s.r.l. has violated Articles 12 and 15 of the Regulation. For the violation of the aforementioned provisions, the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, letter b) of the Regulation is foreseen, through the adoption of an injunction order (Article 18, Law 24.11.1981, No. 689). The Company has also violated Article 157 of the Code. For the violation of this provision, the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5 of the Regulation is foreseen, through the adoption of an injunction order (Article 18, Law 24.11.1981, No.

689).

It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation, where it provides that “If, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation,” the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5.

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must “in any case [be] effective, proportionate and dissuasive” (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

- a) in relation to the nature, severity, and duration of the violation, the particular nature of the violation concerning the exercise of the rights of the interested party as an employee of the data controller has been considered. The circumstance that the failure to respond to the Authority's request for information necessitated the intervention of the Financial Police, aggravating the procedure in economic and time terms, is also relevant in this regard;
- b) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the controller, the lack of an adequate response to the requests for the exercise of the right of access as well as the failure to respond to the Authority's requests have been taken into account;
- c) in favor of the controller, the absence of previous relevant violations committed by the Company has been considered.

It is also believed that the economic conditions of the offender, determined based on the revenues, are relevant in this case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation).

achieved by the Company with reference to the ordinary financial statements for the year 2022. Lastly, consideration is given to the amount of sanctions imposed in similar cases.

In light of the aforementioned elements and the evaluations made, it is deemed appropriate, in this specific case, to apply an administrative sanction against S.T.A. Società Trattamento Acque s.r.l. in the amount of €75,000 (seventy-five thousand euros).

In this context, it is also considered, taking into account the nature of the violations established that concerned the exercise of the rights of the interested party as well as the violation of Article 157 of the Code, that pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the Guarantor's website should be carried out.

It is also deemed that the conditions set forth in Article 17 of Regulation No. 1/2019 are met.

**ALL OF THE ABOVE CONSIDERED, THE GUARANTOR**

notes the illegality of the processing carried out by S.T.A. Società Trattamento Acque s.r.l., with registered office at Via Giordano Di Capi, 28/30, Mantova, VAT No. 01892840206, pursuant to Article 143 of the Code, for the violation of Articles 12 and 15 of the Regulation and Article 157 of the Code;

**ORDERS**

pursuant to Article 58, paragraph 2, letter i) of the Regulation, S.T.A. Società Trattamento Acque s.r.l. to pay the sum of €75,000.00 (seventy-five thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

**REQUIRES**

therefore S.T.A. Società Trattamento Acque s.r.l. to pay the aforementioned sum of €75,000.00 (seventy-five thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is reminded that the offender retains the option to settle the

dispute by paying - always according to the methods indicated in the attachment - an amount equal to half of the imposed sanction, within the term provided for the filing of the appeal as indicated below (Article 166, paragraph 8, of the Code);

DISPOSES

the publication of this provision on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, and considers that the conditions set forth in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, October 12, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei